

26STCV06397 26STCV06397

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-18

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Case Number: 26STCV06397 Hearing Date: August 18, 2026 Dept: 512

Case No.

26STCV06397

Case Name:

Brot Gross Fishbein LLP

v. Taverniti

Hearing Date:

August 18, 2026

Defaulting defendant(s)

BENJAMIN MARTIN ANTOINE

TAVERNITI

TENTATIVE RULING:

On February 26, 2026, Plaintiff

Brot Gross Fishbein LLP ("Plaintiff") filed the instant action against

Defendant Benjamin Martin Antoine Taverniti ("Defendant") and Does 1-10,

alleging causes of action for Breach of Written Contract, Indebitatus

Assumpsit, Account Stated, Open Book Account, and Quantum Meruit. (Compl.)

On April 17, 2026, Plaintiff

filed Proof of Service demonstrating the Summons and Complaint was served on

Defendant by substituted service.

On July 14, 2026, default
was entered against Defendant.

On August 4, 2026, Does 1-10
were dismissed.

As an initial matter, the Court finds default was
improperly entered in this matter. There are multiple defects with the Proof of
Service of the Summons and Complaint filed in this matter, including ambiguity
as to whether the service address is a business or residential address and, if
the address is a residential address, inadequate showing of due diligence.

On its own motion, the Court finds the entry of
default in this matter is Void for the aforementioned reasons. (Code Civ.
Proc., § 473, subd. (d).)

Based on the foregoing, the Default Judgment Packet is
DENIED.

The default entered on July 14, 2026 is STRICKEN.

The Court continues the Order to Show Cause Re:
Default and the Order to Show Cause Re: Default Judgment to October 19, 2026,
at 8:30 a.m.

The Court sets an Order to Show Cause Re: Failure to
File Proof of Service for October 19, 2026 at 8:30 a.m.

Moving party is to give notice.